

Constitutional Law – II

UNIT – I: Meaning of State (Article 12)

◆ Introduction

The Constitution of India guarantees Fundamental Rights (Part III) to individuals against the “State.” To determine the scope of these rights, it's essential to understand what is meant by the term “**State**” under **Article 12**.

◆ Article 12 – Text

“In this part, unless the context otherwise requires, the State includes the Government and Parliament of India and the Government and the Legislature of each of the States, and all local or other authorities within the territory of India or under the control of the Government of India.”

◆ Components of “State” under Article 12

1. Government and Parliament of India

- Refers to **Executive** and **Legislature** at the **Union level**.
- Includes:
 - President, Prime Minister, Council of Ministers
 - Lok Sabha and Rajya Sabha

2. Government and Legislature of States

- Refers to **State-level executive and legislature**.
- Includes:
 - Governor, Chief Minister, Council of Ministers
 - State Legislative Assembly/Council

3. Local Authorities

- Authorities that exercise **governmental functions at local level**.
- Examples:
 - Municipalities
 - Panchayats
 - Zila Parishads
 - Municipal Corporations
- **Test:** Whether the body performs **sovereign functions** like tax collection, public utility, etc.

4. Other Authorities

- This is the **widest and most debated term**.
- Includes statutory and non-statutory bodies that perform **public duties** or are **instrumentalities of the State**.

◆ Landmark Case Laws

👤 Rajasthan Electricity Board v. Mohan Lal (1967)

- **Held:** A government corporation created by a statute falls under “State” as it performs public functions.
- Introduced the idea of “**other authorities**” being broad in nature.

👤 Sukhdev Singh v. Bhagatram (1975)

- **Held:** Statutory bodies like ONGC, LIC, and IFC are “State.”
- **Reason:** They perform public functions and are under government control.

👤 Ramana Dayaram Shetty v. International Airport Authority of India (1979)

- Introduced “**instrumentality or agency test.**”
- If a body is an **agency or instrumentality** of the government, it is a State.

👤 Ajay Hasia v. Khalid Mujib Sehravardi (1981)

- **Laid down tests** to determine if a body is "State":
 1. Financial aid from govt
 2. Monopoly status
 3. Deep government control
 4. Functions of public importance
 5. Origin from a statute

👤 Zee Telefilms Ltd. v. Union of India (2005)

- **Held:** BCCI is **not a “State”** under Article 12 as it is not substantially funded or controlled by government.

◆ Why It Matters?

- Only if an entity falls under “**State**”, can it be challenged for **violation of Fundamental Rights**.
- **Private bodies** are generally **not State**, but the Supreme Court has extended Article 12 to **public function-performing private entities** in some cases.

◆ Conclusion

Article 12 **defines the boundaries** of who can be challenged under Part III for violation of Fundamental Rights. Its interpretation has expanded over time to include not just statutory authorities but also bodies that perform **public duties or are government-controlled**. The judiciary has played a vital role in evolving this definition to **protect citizen rights effectively**.

📖 Laws inconsistent with or in derogation of the Fundamental Rights (Article 13)

◆ Introduction

Article 13 of the Indian Constitution is the **guardian provision** that ensures **laws do not violate Fundamental Rights** (Part III). It reflects the commitment to the principle of **constitutional supremacy** and **judicial review**, making Fundamental Rights **justiciable and enforceable** against the State.

◆ Text of Article 13

Article 13 has four clauses:

✅ Clause (1):

“All laws in force in the territory of India immediately before the commencement of this Constitution, in so far as they are inconsistent with the provisions of this Part, shall, to the extent of such inconsistency, be void.”

✅ Clause (2):

“The State shall not make any law which takes away or abridges the rights conferred by this Part, and any law made in contravention of this clause shall, to the extent of the contravention, be void.”

✅ Clause (3):

In this article:

- **(a)** “Law” includes any ordinance, order, bye-law, rule, regulation, notification, custom, or usage having the force of law.
- **(b)** “Laws in force” includes laws passed by legislature or authority before the Constitution came into force.

✅ **Clause (4):**

(Inserted by the **24th Constitutional Amendment Act, 1971**):

“Nothing in this article shall apply to any amendment of this Constitution made under Article 368.”

◆ **Key Concepts of Article 13**

◆ **1. Pre-Constitutional Laws (Article 13(1))**

- All laws existing before **26 January 1950** must comply with the Fundamental Rights.
- If they violate Fundamental Rights, they are **void to the extent of inconsistency**.

◆ **2. Post-Constitutional Laws (Article 13(2))**

- The State **cannot make laws** that **abridge or take away** Fundamental Rights.
- Any such law is **unconstitutional and void ab initio**.

◆ **3. Doctrine of Severability**

- Only the **inconsistent portion** of the law becomes void, not the whole law.
- **Case Law:** *R.M.D. Chamarbaugwala v. Union of India* (1957)

◆ **4. Doctrine of Eclipse**

- A **pre-constitutional law** inconsistent with Fundamental Rights is **not dead** but merely **eclipsed**.
- It becomes **operative again** if the conflicting Fundamental Right is **amended or removed**.
- **Case Law:** *Bhikaji Narain Dhakras v. State of M.P.* (1955)

◆ **Important Case Laws on Article 13**

👤 **A.K. Gopalan v. State of Madras (1950)**

- Early interpretation: Fundamental Rights are **exclusive and unrelated**.
- Courts avoided striking down laws using broader interpretations.
- **Now overruled.**

👤 **Golak Nath v. State of Punjab (1967)**

- Supreme Court held that **Constitutional Amendments** are “law” under Article 13.
- Therefore, Parliament **cannot amend** Fundamental Rights.

👤 **Kesavananda Bharati v. State of Kerala (1973)**

- Overruled Golak Nath partially.
- Held: **Amendments are not “law” under Article 13**, but they **cannot destroy the “basic structure”** of the Constitution.

👤 **Minerva Mills v. Union of India (1980)**

- Reaffirmed the **basic structure doctrine**.

- Parliament's power to amend is **not unlimited**.

State of Gujarat v. Ambica Mills (1974)

- Held that **eclipsed laws can revive** if inconsistency is removed.

◆ **Significance of Article 13**

Aspect	Significance
◆ Protection of Rights	Guards individuals from unconstitutional laws
◆ Judicial Review Power	Empowers courts to strike down unconstitutional legislation
◆ Constitutional Supremacy	Reaffirms that Constitution is supreme over ordinary laws
◆ Restriction on Legislature	Prevents Parliament and State Legislatures from violating Fundamental Rights

◆ **Conclusion**

Article 13 serves as the **watchdog of Fundamental Rights**. It empowers the judiciary to **strike down laws violating the Constitution** and ensures that both **pre- and post-Constitutional laws** must comply with Part III. Its judicial interpretation has evolved over time, especially with doctrines like **severability, eclipse**, and the **basic structure doctrine**, reinforcing India's commitment to a **constitutional democracy**.

Right to Equality (Articles 14 to 18)

(Part III of the Constitution of India)

◆ **Introduction**

The Right to Equality is enshrined under **Articles 14 to 18** in the Constitution of India. It guarantees **equality before the law, non-discrimination, equal opportunity**, and the **abolition of untouchability and titles**. It is an essential element of a democratic and just society.

✅ **Article-wise Detailed Explanation**

◆ **Article 14: Equality before Law and Equal Protection of Laws**

Text of Article 14:

“The State shall not deny to any person equality before the law or the equal protection of the laws within the territory of India.”

Two Concepts in Article 14:

1. **Equality before Law** (British origin – Rule of Law)
 - Negative concept
 - No one is above the law (e.g., public officials, ministers)
2. **Equal Protection of Laws** (American origin)
 - Positive concept
 - Equal treatment of equals under similar circumstances

Important Doctrines under Article 14:

- **Doctrine of Reasonable Classification**

Classification must be:

1. Based on intelligible differentia
2. That differentia must have a rational nexus with the object of the law

- **Doctrine of Arbitrariness**

Any law that is arbitrary is against Article 14 (E.P. Royappa case)



Landmark Cases:

- **E.P. Royappa v. State of Tamil Nadu (1974)**
– Equality is antithesis of arbitrariness
- **Maneka Gandhi v. Union of India (1978)**
– Article 14 has a wide interpretation; connected with Articles 19 and 21
- **State of West Bengal v. Anwar Ali Sarkar (1952)**
– Struck down special courts law as arbitrary

◆ **Article 15: Prohibition of Discrimination**



Text of Article 15(1) & (2):

Prohibits the State from discriminating against citizens on grounds **only** of **religion, race, caste, sex, or place of birth**.



Clauses (3), (4), and (5):

Permit **positive discrimination** (affirmative action):

- **Clause (3):** State can make special provisions for **women and children**
- **Clause (4):** State can make special provisions for **SCs, STs, and socially and educationally backward classes**
- **Clause (5):** Added by **93rd Amendment (2005)** – Reservations in **private educational institutions** (not minority institutions)



Important Case:

- **Indra Sawhney v. Union of India (1992)**
– OBC reservations upheld
– Total reservation should not exceed 50%

◆ **Article 16: Equality of Opportunity in Public Employment**



Text of Article 16(1) & (2):

Guarantees **equality of opportunity in public employment** to all citizens.



Clauses (3) to (5):

Permit **reasonable reservations**:

- For backward classes
- For SC/STs
- For domiciles in certain states



Important Doctrines and Cases:

- **Doctrine of Proportional Equality**
- **M. Nagaraj v. Union of India (2006)**
– Reservation in promotions permitted with **adequate representation, efficiency, and backwardness** criteria.
- **Jarnail Singh v. Lachhmi Narain Gupta (2018)**
– No need to collect quantifiable data for SC/ST backwardness

◆ **Article 17: Abolition of Untouchability**



Text:

“Untouchability is abolished and its practice in any form is forbidden. The enforcement of any disability arising out of untouchability shall be an offence punishable in accordance with law.”



Key Points:

- Untouchability is a **punishable offence**
- Article 17 has **absolute nature** – no exceptions allowed



Related Law:

- **Protection of Civil Rights Act, 1955**
– Provides punishment for practising untouchability
- **SC/ST (Prevention of Atrocities) Act, 1989**
– Provides more stringent action and protection



Article 18: Abolition of Titles



Text:

Prohibits the State from conferring any titles except **military or academic distinctions**.



Key Points:

- No titles like “**Sir**”, “**Rai Bahadur**”, “**Khan Bahadur**” etc.
- Citizens of India cannot **accept foreign titles**.
- Foreigners holding office in India cannot accept titles **without President’s consent**.



Important Case:

- **Balaji Raghavan v. Union of India (1996)**
– **Civilian awards (like Bharat Ratna, Padma awards)** are **not titles** under Article 18, if not used as prefixes/suffixes.



Summary Table

Article	Provision	Key Focus
Art. 14	Equality before law and equal protection	Rule of Law, non-arbitrariness
Art. 15	No discrimination on certain grounds	Positive discrimination allowed
Art. 16	Equality in public employment	Reservation with limits
Art. 17	Abolition of untouchability	Punishable offence
Art. 18	Abolition of titles	No aristocratic titles



Conclusion

Articles 14 to 18 form the **bedrock of equality jurisprudence** in India. The Constitution does not merely guarantee **formal equality**, but through **positive discrimination**, seeks to establish **substantive equality**. The Supreme Court has constantly interpreted these articles to **balance individual liberty and social justice**, thereby **upholding the democratic ideals** of the Constitution.



Freedom of Speech and Expression (Article 19(1)(a) & 19(2))



Introduction

Freedom of speech and expression is a **Fundamental Right** granted under **Article 19(1)(a)** of the Constitution. It ensures the **free flow of ideas and opinions**, which is crucial for **democracy, individual growth**, and **public accountability**. However, this freedom is **not absolute** and is subject to **reasonable restrictions** under Article 19(2).

◆ Constitutional Provision

✓ Article 19(1)(a):

“All citizens shall have the right to **freedom of speech and expression**.”

✓ Article 19(2):

“Nothing in sub-clause (a) of clause (1) shall affect the operation of any existing law, or prevent the State from making any law, **insofar as such law imposes reasonable restrictions** on the exercise of the right conferred by the said sub-clause in the **interests of**:

- the sovereignty and integrity of India,
- the security of the State,
- friendly relations with foreign States,
- public order,
- decency or morality,
- contempt of court,
- defamation,
- incitement to an offence.”

◆ Scope of Freedom of Speech and Expression

The phrase “freedom of speech and expression” includes the **freedom to express one's convictions and opinions freely** by word of mouth, writing, printing, pictures, or any other mode.

◆ Covered Under This Right:

1. **Right to express opinions freely**
2. **Right to information** (recognized under Right to Life, but indirectly linked)
3. **Freedom of press**
4. **Right to silence** (recognized in Bijoe Emmanuel case)
5. **Right to criticize the government**
6. **Right to artistic, literary, and creative expression**
7. **Freedom of commercial speech** (advertisement)

👤 Important Judicial Interpretations

◆ Romesh Thappar v. State of Madras (1950)

- Press freedom is part of freedom of speech.
- Restrictions on freedom must fall **strictly under Article 19(2)**.

◆ Brij Bhushan v. State of Delhi (1950)

- **Pre-censorship of press** is unconstitutional unless justified under 19(2).

◆ Bennett Coleman v. Union of India (1973)

- **Newsprint control order** violated press freedom.

- Court said **freedom of press = freedom of speech of citizens**.

◆ **Shreya Singhal v. Union of India (2015)**

- **Struck down Section 66A of the IT Act**, which criminalized offensive online content.
- Held it **violated Article 19(1)(a)** and wasn't a reasonable restriction under 19(2).

◆ **Bijoe Emmanuel v. State of Kerala (1986)**

- Right to remain **silent during National Anthem** upheld as part of freedom of expression.

◆ **Indian Express Newspapers v. Union of India (1985)**

- **Press has special importance** in a democracy.
- Economic measures affecting press should not hamper its freedom.

◆ **Reasonable Restrictions under Article 19(2)**

The State may impose **reasonable restrictions** on this freedom in the following cases:

Grounds	Explanation
◆ Sovereignty & Integrity	Prevent speech that threatens national unity. (Inserted by 16th Amendment, 1963)
◆ Security of the State	No speech inciting war, rebellion, terrorism.
◆ Public Order	No speech inciting violence, riots, lawlessness.
◆ Friendly Relations with Foreign States	Speech shouldn't harm diplomatic relations.
◆ Decency or Morality	Ban on obscene acts, pornographic materials (e.g., laws under IPC & IT Act).
◆ Contempt of Court	No speech lowering authority of judiciary.
◆ Defamation	Cannot harm someone's reputation (civil or criminal).
◆ Incitement to an Offence	Encouraging someone to commit crime is punishable.

✚ **Note:** The restriction must be:

- **Reasonable** (not excessive or arbitrary)
- **Within the scope of Article 19(2)**
- Imposed **by law**, not just executive orders

📄 **Case Law Chart Summary**

Case Name	Legal Principle Established
Romesh Thappar (1950)	Freedom of press essential part of free speech
Shreya Singhal (2015)	Online speech protected; vague laws struck down
Bennett Coleman (1973)	Economic restrictions on media not allowed
Bijoe Emmanuel (1986)	Right to silence as free expression
Indian Express Case (1985)	Financial laws must not indirectly curtail press freedom

🏠 **Conclusion**

The **Freedom of Speech and Expression** under Article 19(1)(a) is a **pillar of Indian democracy**. It promotes individual dignity, political participation, and social awareness. However, this right is **not absolute**, and **Article 19(2)** balances personal liberty with **public interest and national security**. Over time, the **judiciary has expanded its scope**, ensuring that this freedom remains **vibrant yet responsible** in a modern democratic society.

Article 20: Protection in Respect of Conviction for Offences

Introduction

Article 20 of the Indian Constitution provides protection to individuals **accused of criminal offences**. It is available to **citizens and non-citizens**, and ensures that **conviction or trial** is done fairly, as per law.

Article 20 – Structure

Clause	Protection Provided
(1)	 Ex Post Facto Law
(2)	 Double Jeopardy
(3)	 Protection against Self-Incrimination

1. Ex Post Facto Law – Article 20(1)

Text of Article 20(1):

“No person shall be convicted of any offence except for violation of a law in force at the time of the commission of the act, **nor be subjected to a penalty greater** than what might have been inflicted under the law in force **when the offence was committed.**”

Meaning:

- **Ex post facto law** = Law that punishes an act **after it was committed**, when it was not illegal at that time.
- This clause prohibits:
 - Conviction under a **retrospective criminal law**
 - Imposing **higher penalty** under a new law for a past act

Allowed:

- **Civil laws** and **tax laws** can be retrospective.
- **Procedural criminal laws** can be applied retrospectively.

Important Case:

Kedar Nath v. State of West Bengal (1953)

– Supreme Court held that **retrospective enhancement of punishment is unconstitutional**.

Example:

- If an act was **not a crime** on 1 Jan 2020, and a law is made on 1 Jan 2021 making it criminal from a past date — then **no one can be punished** for the act committed before 2021.

2. Double Jeopardy – Article 20(2)

Text of Article 20(2):

“No person shall be **prosecuted and punished** for the **same offence more than once.**”

Meaning:

- “**Nemo debet bis vexari pro una et eadem causa**” — No one should be punished twice for the same offence.
- A person **cannot be tried and punished twice** for the **same offence** by **same law**.

⚠️ **Applicable Only If:**

- Person has been **prosecuted** and **punished** once
- Applies to **criminal cases only**

❌ **Not Applicable:**

- If **only prosecution but no punishment**
- **Departmental enquiry** and criminal trial — both can proceed
- **Separate laws** may apply (e.g., NDPS + IPC)

⚖️ **Important Case:**

Maqbool Hussain v. State of Bombay (1953)

– Held: If a person is penalized by **customs authority**, it is **not prosecution** in court, so **double jeopardy doesn't apply**.

📄 **Example:**

If a person is convicted and punished for theft, he **cannot be punished again** for that same theft under the same law.

💠 **3. Protection Against Self-Incrimination – Article 20(3)**

📖 **Text of Article 20(3):**

“No person accused of any offence shall be compelled to be a witness against himself.”

🔍 **Meaning:**

- The accused has **right to remain silent** and **not forced to give evidence** against himself.
- Rooted in the principle: “**Nemo tenetur se ipsum accusare**” (No man is bound to accuse himself)

✅ **Key Conditions:**

1. Person must be **accused of an offence**
2. Compulsion must come from **State**
3. Protection is against **testimonial compulsion** only (e.g., oral/written confession)

❌ **Not Covered:**

- Providing **fingerprints, handwriting, blood samples** (non-testimonial)
- Witness voluntarily giving statement
- **Documents found during search**

⚖️ **Important Case Laws:**

♦ **Nandini Satpathy v. P.L. Dani (1978)**

– Right against self-incrimination applies **even during police investigation**.

♦ **Selvi v. State of Karnataka (2010)**

– Forced **Narco-analysis, Polygraph, Brain mapping** are **unconstitutional**.

♦ State of Bombay v. Kathi Kalu Oghad (1961)

– Taking fingerprints or specimen signatures **not covered** by Article 20(3).

📁 Summary Table

Protection	Article	Scope	Limitation
Ex Post Facto Law	20(1)	No retrospective criminal punishment	Civil/tax laws may be retrospective
Double Jeopardy	20(2)	No 2nd trial & punishment for same offence	Applies only to criminal prosecution
Self-Incrimination	20(3)	Accused can't be forced to testify	Only "accused", only "testimonial" compulsion

🏠 Conclusion

Article 20 offers **vital protections to accused persons** in criminal law. It ensures **fairness, justice, and liberty** by:

- Preventing punishment for **past non-crimes**,
- Barring **repeated prosecution**,
- Protecting individuals from **forced confessions**.

These protections maintain the balance between **State authority and individual dignity**, and are **non-derogable**, i.e., **cannot be suspended even during Emergency**.

📁 UNIT – II

Right to Life and Personal Liberty (Article 21)

♦ Text of Article 21

"No person shall be deprived of his life or personal liberty except according to procedure established by law."

♦ Breakdown of Article 21

Phrase	Meaning
"No person"	Applicable to both citizens and non-citizens
"Shall be deprived"	Provides protection against State actions
"Life or personal liberty"	Broad, not just physical survival
"Except according to procedure established by law"	There must be a fair, just, and reasonable legal process

♦ Evolution of Article 21: Narrow to Broad Interpretation

♦ A.K. Gopalan v. State of Madras (1950)

- Initial narrow interpretation
- "Procedure established by law" = **any enacted law**, even if arbitrary

♦ Maneka Gandhi v. Union of India (1978) ★

- **Landmark case**
- Expanded Article 21 by linking it with Articles **14 and 19**
- "Procedure" must be:

- **Fair**
- **Just**
- **Reasonable**

- Arbitrary laws **cannot violate life or liberty**

◆ **Meaning of "Life" Under Article 21**

Supreme Court has interpreted "life" to mean:

- Not mere animal existence
- Includes **right to live with human dignity**

✓ **Includes:**

- Right to livelihood (Olga Tellis v. Bombay Municipal Corp., 1985)
- Right to health and medical care (Paschim Banga case)
- Right to clean environment (Subhash Kumar v. State of Bihar)
- Right to shelter (Chameli Singh v. State of UP)
- Right to privacy (Justice K.S. Puttaswamy case, 2017)
- Right to reputation (State of Bihar v. Lal Krishna Advani)
- Right to a fair trial (Zahira Sheikh v. State of Gujarat)

◆ **Meaning of "Personal Liberty"**

"Personal liberty" has been interpreted to include:

- **Freedom from arbitrary arrest & detention**
- **Right to travel abroad** (Maneka Gandhi case)
- **Right to legal aid** (Hussainara Khatoon case)
- **Right against solitary confinement and custodial torture**
- **Right to die with dignity** (Common Cause v. Union of India, 2018 – Passive Euthanasia allowed)

◆ **Landmark Case Laws**

Case Name	Principle Established
Maneka Gandhi v. Union of India (1978)	Procedure must be fair, just, reasonable
Olga Tellis v. Bombay M.C. (1985)	Right to livelihood is part of life
K.S. Puttaswamy v. Union of India (2017)	Right to privacy is a fundamental right
Hussainara Khatoon (1979)	Right to free legal aid and speedy trial
Sunil Batra v. Delhi Admin (1978)	Protection against inhuman prison conditions
Common Cause v. Union of India (2018)	Passive euthanasia and living will allowed
Francis Coralie v. Union Territory of Delhi (1981)	Life means to live with dignity

◆ **Important Doctrines Evolved**

- ◆ **Due Process of Law (implied post-Maneka Gandhi)**

– Though the phrase "due process" is not written in Article 21, SC has made it implicit by requiring fairness.

◆ Right to Die Debate

- Earlier in *Gian Kaur v. State of Punjab* (1996), SC held suicide is not a right
- Later, in **Common Cause case**, passive euthanasia allowed with safeguards

📁 Summary Table

Aspect	Interpretation
Life	Dignified existence, beyond survival
Personal Liberty	Autonomy over one's body, movement, and privacy
Protection Scope	Available against State actions only
Applicable To	All persons (citizens & foreigners)
Exceptions	Legal procedures that are fair and just

🏠 Conclusion

Article 21 has emerged as the **soul of the Constitution**, providing a wide umbrella of rights that ensure **dignity, freedom, and protection** of individuals. Its evolution from a narrow procedural safeguard to a **dynamic and living right** reflects the judiciary's role in making constitutional values more meaningful in people's lives.

📖 Right to Religion (Articles 25 to 28)

◆ Introduction

- **India is a secular state**, i.e., there is no official religion.
- State ensures **equal respect to all religions**, and **non-discrimination** based on religion.
- **Articles 25 to 28** provide for **freedom of religion** — both individual and institutional.
- These rights are available to **citizens as well as non-citizens**, with some exceptions.

◆ Article 25 – Freedom of Conscience and Free Profession, Practice and Propagation of Religion

✿ Key Elements:

1. **Freedom of conscience** – Right to believe or not believe.
2. **Free profession** – Right to declare and follow any religion.
3. **Practice** – Right to worship, perform rituals and ceremonies.
4. **Propagation** – Right to spread religious beliefs (**not forced conversions**)

! Subject to:

- Public order
- Morality
- Health
- Other Fundamental Rights

📌 Explanation I & II:

- Allows the State to regulate **secular aspects** (like economic, political, or social welfare).
- **Religious denominations** can manage their own affairs.

🏛️ Case Law:

- **Rev. Stainislaus v. State of Madhya Pradesh (1977)**
 - ♦ Held: **Right to propagate ≠ Right to convert**. Forced conversion is **not protected** under Article 25.

◆ Article 26 – Freedom to Manage Religious Affairs

Applies to **every religious denomination or any section thereof**.

✅ Rights under Art. 26:

- a) To establish and maintain institutions for religious and charitable purposes
- b) To manage its own affairs in matters of religion
- c) To own and acquire movable and immovable property
- d) To administer such property according to law

✖ Limitations:

- Subject to **public order, morality and health**

🏛️ Case Law:

- **S.P. Mittal v. Union of India (1983)**
 - ♦ Only institutions formed for religious purpose are protected under Art. 26.
- **Shirur Mutt Case (1954)**
 - ♦ SC distinguished between **essential religious practices** and **secular activities**, allowing state to regulate the latter.

◆ Article 27 – Freedom as to Payment of Taxes for Promotion of Religion

- No person shall be compelled to pay **any taxes** the proceeds of which are specifically used for the **promotion or maintenance of any religion** or religious denomination.

🔴 **State cannot collect tax to support religious activities.**

◆ Article 28 – Freedom as to Attendance at Religious Instruction

🏠 **Applies to educational institutions:**

Type of Institution	Religious Instruction Allowed?
Wholly maintained by State	❌ Not allowed at all
State-recognized but not wholly funded	✅ Allowed with consent
Administered by religious groups (but State-aided)	✅ Allowed, but attendance is voluntary

🏛️ Case Law:

- **Aruna Roy v. Union of India (2002)**
 - ♦ Held: **Moral education ≠ Religious instruction**. Value-based education is permissible.

◆ Scope and Limitations of Right to Religion

Limitation Area Constitutionally Permissible Restriction

Public order	Prevent riots, violence in the name of religion
Morality	Ban on superstitious or exploitative practices
Health	Prohibition of harmful rituals

Limitation Area Constitutionally Permissible Restriction

Other FRs Religion cannot override dignity, equality etc.

◆ Important Doctrines

◆ Essential Religious Practices Doctrine

- Introduced in **Shirur Mutt Case (1954)**
- Only those practices which are **essential and integral to religion** are protected.

✚ Example:

Wearing of hijab was recently examined under this doctrine in **Karnataka Hijab Case (2022)** – SC ruled it not essential to Islam in certain contexts.

📁 Summary Table

Article	Subject Matter
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Art. 25	Individual Freedom of Religion
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Art. 26	Freedom of Religious Denominations
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Art. 27	No Tax for Promotion of Religion
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Art. 28	Religious Instruction in Educational Institutions
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🔙 Conclusion

Articles **25 to 28** uphold the **secular fabric** of Indian Constitution by guaranteeing religious freedom while ensuring that the **State remains neutral** in religious matters. However, this freedom is **not absolute** and is **subject to reasonable restrictions** for the interest of public order, health, and morality. Courts have played a vital role in balancing these rights through interpretation and case law.

📁 Cultural and Educational Rights (Articles 29–30)

◆ Introduction

- **India** is a multi-lingual, multi-cultural society.
- The Constitution guarantees **protection of interests of minorities** so that they can **preserve their language, script, and culture**, and establish their own educational institutions.
- Articles **29 & 30** ensure that **diversity is protected** while maintaining national unity.

◆ Article 29 – Protection of Interests of Minorities

✅ Clause (1):

“Any section of the citizens residing in the territory of India or any part thereof having a distinct language, script or culture of its own shall have the right to conserve the same.”

📌 Key Points:

- Available to **any section of citizens** (not necessarily religious or linguistic minorities).
- Helps in preservation of **language, script, culture**.
- It is an **individual as well as group right**.

✅ Clause (2):

“No citizen shall be denied admission into any educational institution maintained by the State or receiving aid out of State funds on grounds only of religion, race, caste, language or any of them.”

✦ Key Points:

- Prohibits **discrimination in educational institutions** (state-funded) based on religion, race, caste, language.
- This is a **right of individual citizens**, not just minorities.

🏛 Case Law:

- **State of Madras v. Champakam Dorairajan (1951)**
 - ♦ Held: Caste-based admission reservations in educational institutions violated Art. 29(2) — led to **First Constitutional Amendment (1951)**.

♦ Article 30 – Right of Minorities to Establish and Administer Educational Institutions

✅ Clause (1):

“All minorities, whether based on religion or language, shall have the right to establish and administer educational institutions of their choice.”

✦ Key Elements:

- Applies to **religious and linguistic minorities** only.
- Right to **establish** (set up) and **administer** (manage) educational institutions.
- The word “**administer**” includes the right to appoint teachers, decide syllabus, fee structure, etc.

✅ Clause (1A) (added by 44th Amendment, 1978):

In case of acquisition of a minority institution's property, compensation must be paid.

✦ Ensures that minority institutions are not unjustly taken over by the State.

✅ Clause (2):

“The State shall not, in granting aid to educational institutions, discriminate against any educational institution on the ground that it is under the management of a minority.”

✦ Key Point:

- **Minority institutions cannot be denied State aid** just because they are run by minorities.

♦ Important Judicial Pronouncements

♦ Kerala Education Bill Case (1958)

- SC clarified scope of minority rights under Art. 30.
- Minority institutions have **autonomy** but subject to **reasonable regulations** by the State.

♦ St. Xavier's College v. State of Gujarat (1974)

- Held: **Minority institutions have full rights to administer**, though regulations to ensure academic standards are permissible.

♦ T.M.A. Pai Foundation v. State of Karnataka (2002)

- Landmark judgment.
- Distinguished between **unaided and aided institutions**.
- Held: Minority institutions can **admit students of their own community** up to a certain extent.

◆ Difference Between Article 29 and Article 30

Basis	Article 29	Article 30
Beneficiaries	Any section of citizens	Only religious or linguistic minorities
Focus	Right to conserve language, script, culture	Right to establish & administer institutions
Anti-discrimination	In admission (Art. 29(2))	In State aid (Art. 30(2))
Nature of right	Both individual and group	Group right

◆ Limitations and Reasonable Regulations

- Though minority institutions have rights, the **State can impose regulations** to:
 - Maintain educational standards
 - Ensure proper infrastructure
 - Prevent maladministration

 However, such regulations **must not destroy the minority character** of the institution.

🔙 Conclusion

Articles **29 and 30** protect India's **pluralistic character** by granting minorities the right to preserve their **culture, language and identity**, and to build their own **educational institutions**. These provisions reflect the **spirit of inclusiveness**, while the judiciary ensures a balance between autonomy and regulation.

📖 Right to Constitutional Remedies (Article 32)

(Heart and Soul of the Constitution – Dr. B.R. Ambedkar)

◆ Introduction

- **Article 32** provides **guaranteed remedy** for enforcement of Fundamental Rights.
- Described by **Dr. B.R. Ambedkar** as the "**Heart and Soul of the Constitution**".
- Without this right, Fundamental Rights would be merely theoretical.

◆ Text of Article 32

Art. 32(1): The right to move the Supreme Court by appropriate proceedings for the enforcement of Fundamental Rights is guaranteed.

Art. 32(2): The Supreme Court shall have power to issue directions or orders or writs, including **habeas corpus, mandamus, prohibition, quo warranto, and certiorari**, for enforcement of Fundamental Rights.

Art. 32(3): Parliament may empower any other court to exercise these powers.

Art. 32(4): This right shall not be suspended **except as otherwise provided for by the Constitution** (i.e., during Emergency under Article 359).

◆ Nature of Right

- **Fundamental Right in itself** (Unlike most remedies which are procedural).
- Only for **violation of Fundamental Rights** (Articles 12–35).
- Can be directly approached to the **Supreme Court** without going to High Court.

◆ Writs Under Article 32

The Supreme Court can issue **five types of writs**:

Writ	Purpose
Habeas Corpus	"To have the body" – for unlawful detention; court directs the person detaining another to bring them before the court.
Mandamus	"We command" – to compel a public authority to perform a legal duty.
Prohibition	To prevent a lower court or tribunal from exceeding its jurisdiction.
Certiorari	To quash the order of a lower court or tribunal which acted beyond jurisdiction.
Quo Warranto	"By what authority?" – challenges a person's right to hold a public office.

◆ Important Case Laws

◆ Romesh Thappar v. State of Madras (1950)

- Supreme Court held that Art. 32 is the very basis of the Constitution.
- Right to move the Supreme Court cannot be refused when Fundamental Rights are violated.

◆ Smt. Ujjam Bai v. State of U.P. (1963)

- Art. 32 can be invoked only when there is **direct infringement** of a Fundamental Right.

◆ Keshavananda Bharati v. State of Kerala (1973)

- Declared **basic structure doctrine**.
- Art. 32 was held to be part of the **basic structure** – cannot be taken away even by constitutional amendment.

◆ Maneka Gandhi v. Union of India (1978)

- Expanded the interpretation of Art. 21 (right to life) and reinforced that **any law violating FRs can be challenged under Art. 32**.

◆ Difference Between Article 32 and Article 226

Aspect	Article 32	Article 226
Jurisdiction	Supreme Court	High Courts
Scope	Only for Fundamental Rights	For FRs + other legal rights
Right	Itself a Fundamental Right	Not a Fundamental Right
Nature	Cannot be refused by SC	Discretionary for High Court

◆ Limitations of Article 32

- Only for **enforcement of Fundamental Rights** (Not for ordinary legal rights).
- Can be **suspended during Emergency** (Art. 359).
- SC may deny relief if **alternate remedy** is available or if **petition is frivolous**.

◆ Conclusion

Article 32 is a **cornerstone of India's constitutional democracy**. It ensures that citizens can **seek justice** directly from the **highest court** in case of violation of their fundamental rights. It acts as a **watchdog and protector** of civil liberties in India.

✓ That's why it's called the **"Heart and Soul of the Constitution"**.

UNIT – III

Directive Principles of State Policy (DPSP)

(Part IV of the Indian Constitution – Articles 36 to 51)

Introduction

The **Directive Principles of State Policy** are guidelines or principles set out in **Part IV (Articles 36 to 51)** of the Constitution. These are not enforceable by any court but are **fundamental in the governance** of the country.

Definition & Nature

- **Definition:** DPSPs are **ideals** that the state should strive to achieve for establishing a **just social and economic order**.
- **Not justiciable** – i.e., they are **non-enforceable** in courts.
- Yet, they are **fundamental in the governance** of the country.
- Derived from the **Irish Constitution**.

Classification of DPSPs (According to Purpose)

✓ 1. Socialist Principles (Articles 38, 39, 41, 42, 43, 43A, 47)

Aim: Establish socio-economic justice and reduce inequality

- **Art. 38** – Promote welfare of the people and reduce inequalities
- **Art. 39** – Equal pay for equal work, adequate means of livelihood
- **Art. 41** – Right to work, education and public assistance
- **Art. 42** – Just and humane conditions for work, maternity relief
- **Art. 43** – Living wage, decent standard of life for workers
- **Art. 43A** – Participation of workers in industrial management
- **Art. 47** – Raise level of nutrition, standard of living, improve public health

✓ 2. Gandhian Principles (Articles 40, 43B, 46, 47, 48)

Aim: Based on Mahatma Gandhi's ideals for rural development

- **Art. 40** – Organisation of village panchayats
- **Art. 43B** – Promotion of co-operative societies
- **Art. 46** – Promotion of educational and economic interests of SCs, STs and weaker sections
- **Art. 47** – Prohibition of intoxicating drinks and drugs
- **Art. 48** – Organisation of agriculture and animal husbandry, prohibition of cow slaughter

✓ 3. Liberal-Intellectual Principles (Articles 44, 45, 48A, 49, 50, 51)

Aim: Ensure democracy and international peace

- **Art. 44** – Uniform civil code for all citizens
- **Art. 45** – Early childhood care and education for children below 6 years
- **Art. 48A** – Protection and improvement of environment and forests
- **Art. 49** – Protection of monuments and heritage

- **Art. 50** – Separation of judiciary from the executive
- **Art. 51** – Promotion of international peace and security

◆ Importance of DPSPs

- Serve as a **yardstick to measure government performance**
- Inspire legislation and policies in line with **welfare state**
- Give content to **Fundamental Rights**
- Help achieve **economic and social democracy**

◆ DPSPs and Fundamental Rights: Relationship

- **Fundamental Rights are justiciable**, DPSPs are **non-justiciable**
- **Conflicts may arise**, but **harmony** is intended.
- **Art. 31C** (after 42nd Amendment, 1976):
Any law made to give effect to DPSPs (under Article 39(b) and (c)) **cannot be challenged** even if it violates **Article 14 or 19**.

◆ Important Case Laws

◆ State of Madras v. Champakam Dorairajan (1951)

- Supreme Court held that **Fundamental Rights override DPSPs**.
- Resulted in **1st Constitutional Amendment (1951)**.

◆ Golaknath v. State of Punjab (1967)

- Parliament **cannot amend Fundamental Rights** to implement DPSPs.

◆ Kesavananda Bharati v. State of Kerala (1973)

- **Doctrine of Basic Structure** introduced
- Parliament can amend any part but **cannot destroy basic structure**.

◆ Minerva Mills v. Union of India (1980)

- **Harmony between FRs and DPSPs is essential**
- DPSPs cannot override Fundamental Rights.

◆ Unni Krishnan v. State of Andhra Pradesh (1993)

- **Right to education** (DPSP) interpreted as a **Fundamental Right** under Art. 21.

◆ Recent Developments

- Many DPSPs have been implemented via laws (e.g., MGNREGA, RTI Act, Mid-day Meal Scheme).
- Uniform Civil Code still debated (Art. 44).
- Environmental protection (Art. 48A) strengthened by judicial interpretation under **Art. 21**.

◆ Criticism of DPSPs

- Non-enforceable – mere **moral obligations**
- Lack of priority in governance
- Conflicts with Fundamental Rights at times

◆ Conclusion

The Directive Principles act as **guiding lights** for governments to achieve **social and economic democracy**. Though non-justiciable, they are **crucial for governance** and play a vital role in creating a **welfare state**.

■ Relationship between Fundamental Rights and Directive Principles of State Policy (DPSPs)

◆ Introduction

The **Fundamental Rights** (Part III, Articles 12–35) and the **Directive Principles of State Policy** (Part IV, Articles 36–51) form the **core of the Indian Constitution**. Both aim to establish a **welfare state** but adopt **different approaches**:

- **Fundamental Rights** are **negative obligations** on the State – they prevent the State from interfering in individual liberty.
- **DPSPs** are **positive obligations** – they direct the State to take action for social and economic justice.

Despite this difference, the **ultimate objective** of both is **human dignity, liberty, equality, and justice**.

◆ Fundamental Rights vs. DPSPs – Comparative Overview

Aspect	Fundamental Rights	DPSPs
Part of Constitution	Part III (Art. 12–35)	Part IV (Art. 36–51)
Nature	Justiciable (enforceable in courts)	Non-justiciable
Purpose	Protect individual liberty and rights	Promote social welfare and economic democracy
Legal Status	Can be enforced through writs (Art. 32, 226)	Not enforceable by courts
Type of Obligation	Negative (State must not act against rights)	Positive (State must act to fulfill ideals)
Examples	Right to Equality, Right to Freedom	Equal pay, education, public health, UCC

◆ Conflicts and Harmony Between FRs & DPSPs

⚖️ Early Judicial View – Fundamental Rights Prevail

- In **State of Madras v. Champakam Dorairajan (1951)**:
Supreme Court held that **DPSPs cannot override Fundamental Rights**.
→ Led to **First Constitutional Amendment (1951)** to give importance to DPSPs.

◆ Key Constitutional Amendments and Judicial Interpretations

■ 1st Constitutional Amendment Act, 1951

- Introduced **Article 15(4)**: Reservation in education/employment for backward classes to implement DPSPs (Art. 46).

■ 25th Constitutional Amendment, 1971

- Introduced **Article 31C**:
 - Laws made to implement **Article 39(b) and (c)** (distribution of wealth, control of economic resources) **cannot be challenged** on the ground of violating **Article 14 or 19**.

■ 42nd Constitutional Amendment, 1976

- Extended **Article 31C** to cover **all DPSPs**, not just Art. 39(b) and (c).
- Made **DPSPs superior to Fundamental Rights (Art. 14 & 19)**.

■ 44th Constitutional Amendment, 1978

- Reversed the 42nd Amendment's extended scope.
- Now **only Article 39(b) & (c)** enjoy protection under **Article 31C**.

⚖️ Judicial Interpretation: Key Cases

◆ Kesavananda Bharati v. State of Kerala (1973)

- Parliament can amend any part of the Constitution but **cannot destroy the Basic Structure**.
- Balance between **FRs and DPSPs** is part of the **Basic Structure**.

◆ Minerva Mills v. Union of India (1980)

- Invalidated the **42nd Amendment's extension** of Art. 31C to all DPSPs.
- Held that **FRs and DPSPs are complementary**, not subordinate.
- "Indian Constitution is founded on the bedrock of the balance between Part III and Part IV."

◆ Unni Krishnan v. State of Andhra Pradesh (1993)

- **Right to education**, a DPSP (Art. 45), was held to be a **Fundamental Right under Art. 21**.

◆ Olga Tellis v. Bombay Municipal Corporation (1985)

- **Right to livelihood**, though in DPSP (Art. 39), is interpreted as part of **Right to Life (Art. 21)**.

◆ Doctrine of Harmonious Construction

- Courts have adopted this doctrine to **reconcile conflicts** between FRs and DPSPs.
- It means both should be interpreted in **harmony** with each other and **not in conflict**.
- **DPSPs give meaning to FRs**, especially in socio-economic rights.

◆ Examples of DPSPs Implemented Through Laws

DPSP	Implementing Law
Art. 39(b)(c) – Economic justice	Nationalisation of banks, MGNREGA
Art. 41 – Right to work	Mahatma Gandhi National Rural Employment Guarantee Act
Art. 45 – Free education	Right to Education Act, 2009
Art. 47 – Public health	Mid-day Meal Scheme, Prohibition laws
Art. 48A – Environment	Environment Protection Act, 1986

◆ Conclusion

The relationship between **Fundamental Rights and DPSPs** is one of **mutual reinforcement** rather than conflict. While **FRs ensure individual liberty**, **DPSPs ensure collective welfare**. Both must go hand in hand to achieve the **Constitution's vision of justice, liberty, equality, and fraternity**.

■ Fundamental Duties

(Part IV-A, Article 51A of the Constitution of India)

◆ Introduction

The concept of **Fundamental Duties** was not part of the original Constitution of India. It was added later to remind citizens that **rights come with responsibilities**. These duties aim to **promote patriotism, discipline, and commitment** to the nation.

◆ Background & Constitutional Provision

- **Added by: 42nd Constitutional Amendment Act, 1976**
- **Part: Part IV-A** of the Constitution
- **Article: Article 51A**
- **Number of Duties:** Initially 10, later **increased to 11** by the **86th Amendment Act, 2002**

◆ Text of Article 51A – List of Fundamental Duties

It shall be the duty of every citizen of India:

1. **To abide by the Constitution** and respect its ideals and institutions, the National Flag and the National Anthem.
2. **To cherish and follow the noble ideals** which inspired our national struggle for freedom.
3. **To uphold and protect the sovereignty, unity, and integrity** of India.
4. **To defend the country** and render national service when called upon to do so.
5. **To promote harmony** and the spirit of common brotherhood among all people of India and renounce practices derogatory to the dignity of women.
6. **To value and preserve the rich heritage** of our composite culture.
7. **To protect and improve the natural environment**, including forests, lakes, rivers and wildlife, and to have compassion for living creatures.
8. **To develop the scientific temper**, humanism and the spirit of inquiry and reform.
9. **To safeguard public property** and to abjure violence.
10. **To strive towards excellence** in all spheres of individual and collective activity.
11. *(Added by 86th Amendment, 2002)* – **To provide opportunities for education to children** between the age of 6 and 14 years and ensure their attendance in schools.

◆ Nature & Features of Fundamental Duties

Feature	Description
Non-justiciable	Not enforceable by courts (unlike Fundamental Rights)
Moral Obligations	Serve as a reminder of moral responsibilities of citizens
Applies only to citizens	Fundamental Duties are binding only on citizens , not on foreigners
Supplement FRs and DPSPs	They balance rights with responsibilities and support Directive Principles

◆ Importance of Fundamental Duties

1. **Promote responsible citizenship** and national unity.
2. Serve as a **moral guide** to citizens.
3. Encourage **discipline and respect for the law**.
4. Help in maintaining **communal harmony and environmental protection**.
5. Support **educational reforms and constitutional literacy**.

◆ Judicial Recognition of Fundamental Duties

Even though Fundamental Duties are **not enforceable**, the **Supreme Court has upheld their significance** in many cases:

◆ All India Students' Union v. All India Medical Sciences (2002)

- SC observed that **duties should be enforced when necessary** to maintain discipline and public order.

◆ Rangnath Mishra v. Union of India (2007)

- Supreme Court said that **duties are as important as rights**; awareness among citizens should be increased.

◆ MC Mehta v. Union of India (1987)

- Environmental protection is a **duty under Article 51A(g)** and should be observed seriously.

◆ Criticism of Fundamental Duties

Criticism	Explanation
Non-justiciable	No legal sanction or punishment for violation
Vague Language	Some duties are general and lack specificity
No awareness	Many citizens are unaware of these duties
State-centered	Emphasis more on citizens' duties towards the State, not vice versa

◆ Suggestions for Better Implementation

1. **Legal enforcement** for some duties through ordinary legislation
2. **Public awareness campaigns**
3. **Inclusion in school curriculum**
4. **Rewarding responsible citizenship**

◆ Conclusion

The **Fundamental Duties** play a vital role in **strengthening democracy** by making citizens aware of their **responsibilities towards the nation**. Though non-enforceable, they form the **moral backbone** of the Constitution and help in achieving the **goals of justice, liberty, equality, and fraternity**.

■ UNIT – IV

Emergency Provisions – National & State Emergency and Their Implications

(Part XVIII, Articles 352 to 360 of the Constitution of India)

◆ Introduction

The **Emergency Provisions** in the Indian Constitution empower the **President (Central Government)** to deal with **abnormal situations** that threaten the **security, governance, or financial stability** of the country. They were **inspired by the Weimar Constitution of Germany** and are found in **Part XVIII (Articles 352–360)**.

◆ Types of Emergency in India

Type	Article	Name	Basis
1	Article 352	National Emergency	War, External Aggression or Armed Rebellion
2	Article 356	President's Rule / State Emergency	Failure of Constitutional Machinery in State

Type	Article	Name	Basis
3	Article 360	Financial Emergency	Threat to financial stability or credit of India

1. National Emergency – Article 352

✓ Grounds:

- **War**
- **External Aggression**
- **Armed Rebellion** (*added by 44th Amendment, 1978; replaced "internal disturbance"*)

✓ Procedure:

- Declared by **President** on the **written advice of the Union Cabinet**.
- **Must be approved by both Houses of Parliament** within **1 month**, then continues for **6 months** and can be extended indefinitely with **parliamentary approval every 6 months**.

✓ Effects / Implications:

a) Centre-State Relations:

- Union gets power to **direct any state**.
- State governments **do not get suspended** but come under **central control**.

b) Legislative Powers:

- Parliament can make laws on **any subject**, including **State List**.

c) Executive Powers:

- Centre can give **executive directions** to states.

d) Fundamental Rights:

- **Art. 19 is suspended** during Emergency (only if emergency is due to **War or External Aggression**, not Armed Rebellion).
- **Art. 358 & 359** come into effect:
 - **Art. 358**: Suspension of Art. 19 automatically.
 - **Art. 359**: President can suspend right to move court for enforcement of FRs (except **Arts. 20 and 21**, after 44th Amendment).

✓ Notable Cases & Historical Facts:

- **First National Emergency (1962–1968)** – China War
- **Second Emergency (1971)** – Pakistan War
- **Third Emergency (1975–77)** – Declared by Indira Gandhi citing "internal disturbance" (most controversial)

2. State Emergency / President's Rule – Article 356

✓ Grounds:

- If President is satisfied that the **government of a state cannot be carried on in accordance with the Constitution** (commonly called **Breakdown of Constitutional Machinery**).

✓ Procedure:

- Proclaimed by **President**, on **Governor's report** or **suo motu**.

- Must be approved by both Houses of Parliament within **2 months**.
- Duration: Initially for **6 months**, can be extended **up to 3 years** with conditions:
 - Approval every 6 months
 - After 1 year: **National Emergency** must be in operation or **Election Commission certifies that election cannot be held**

✓ Effects / Implications:

- State Legislature may be **suspended or dissolved**.
- **Governor administers the state** on behalf of the President.
- Parliament makes laws for the state.
- **No impact on Fundamental Rights**.

✓ Misuse & Judicial Control:

◆ S.R. Bommai v. Union of India (1994)

- Landmark judgment on misuse of Article 356
- **President's Rule is subject to judicial review**
- **Floor test** must be held to prove majority
- **Secularism** is a basic feature – if violated, Art. 356 can be invoked

● 3. Financial Emergency – Article 360

✓ Grounds:

- If the President is satisfied that the **financial stability or credit of India or any part thereof is threatened**

✓ Procedure:

- Declared by **President**
- Must be approved by Parliament within **2 months**
- **No time limit** for duration (can continue indefinitely)

✓ Effects / Implications:

- Centre can **reduce salaries and allowances** of government servants (including judges of SC/HC).
- Money bills of states can be **reserved for President's consideration**.
- Directions can be given to states for **financial propriety**.

■ **Note: No Financial Emergency has ever been declared in India.**

◆ Important Amendments

Amendment

Impact

38th Amendment (1975) Made Emergency declaration **final and beyond judicial review** (later reversed)

42nd Amendment (1976) Strengthened Centre's powers during Emergency

Amendment	Impact
44th Amendment (1978)	Restricted Emergency powers; inserted Cabinet advice requirement; ensured Arts. 20 & 21 remain enforceable

◆ Criticism of Emergency Provisions

- **Potential for misuse**, especially Art. 356.
- Threat to **federalism and democracy**.
- Excessive **centralization of power**.
- **Abuse during 1975 Emergency** showed dangers to civil liberties.

◆ Conclusion

Emergency provisions are like a **constitutional safety valve** meant for extraordinary situations. While they equip the **Union with necessary powers**, they must be used with **great care and responsibility**, keeping in mind the **spirit of democracy, federalism, and rule of law**.

■ Amendment of the Constitution & Basic Structure Doctrine

(Articles 368 and Key Case Laws)

◆ A. Amendment of the Constitution

✓ Why Amend the Constitution?

- To meet **changing social, economic, and political needs**
- To **update laws** and structures with time
- To **correct loopholes** or clarify constitutional provisions

✓ Relevant Article: Article 368

Article 368 provides the **procedure for amendment** of the Constitution.

◆ Types of Amendments under Article 368

Type	Procedure	Examples
1. By Simple Majority	Passed by a simple majority in both Houses of Parliament	Admission of new states (Art. 2), Changes in the 5th or 6th Schedule
2. By Special Majority	Passed by two-thirds majority of members present and voting + more than 50% of total strength of the House	Fundamental Rights, DPSPs, Parliament structure
3. By Special Majority + Ratification by half of the States	Same as above + ratification by at least 50% of state legislatures	Election of President, Union Judiciary, distribution of powers

✓ Amendability: Key Constitutional Provisions

- **Article 368(1)**: Gives Parliament the power to amend
- **Article 368(2)**: Describes the procedure
- **There is no separate body like a "Constituent Assembly"**; Parliament itself acts as the amending authority.

◆ B. Basic Structure Doctrine

✓ Meaning

The **Basic Structure Doctrine** is a **judicial innovation** that limits Parliament's power to amend the Constitution. It states that **certain fundamental features of the Constitution cannot be altered or destroyed**, even by constitutional amendments.

✓ Origin of the Doctrine

Introduced in the **landmark case**:

🏛️ Kesavananda Bharati v. State of Kerala (1973)

- **Supreme Court** ruled that **Parliament can amend any part** of the Constitution, **but not the basic structure**.
- It **overruled Golaknath v. State of Punjab (1967)** (which said FRs could not be amended).
- Laid the **foundation for constitutional supremacy** over parliamentary supremacy.

✓ Elements of Basic Structure

(Not exhaustively defined – determined by judiciary from case to case)

Some recognized elements:

1. **Supremacy of the Constitution**
2. **Rule of Law**
3. **Sovereign, Democratic, Republic nature**
4. **Secularism**
5. **Separation of powers**
6. **Federalism**
7. **Judicial Review**
8. **Unity and integrity of the nation**
9. **Free and fair elections**
10. **Parliamentary system of government**
11. **Dignity of the individual**
12. **Harmony between Fundamental Rights and Directive Principles**

◆ Important Case Laws

◆ Shankari Prasad v. Union of India (1951)

- SC held: **Parliament can amend Fundamental Rights** under Art. 368.

◆ Golaknath v. State of Punjab (1967)

- SC reversed earlier view: said **Parliament cannot amend FRs**.
- FRs are **transcendental** and **beyond Parliament's reach**.

◆ Kesavananda Bharati v. State of Kerala (1973)

- Landmark judgment (13-judge bench)
- **Parliament can amend FRs but not the Basic Structure**.
- Established the **Basic Structure Doctrine**.

◆ Indira Nehru Gandhi v. Raj Narain (1975)

- Declared **clause excluding judicial review** in election disputes **unconstitutional** as it violated **basic structure**.

◆ Minerva Mills v. Union of India (1980)

- Strengthened the **balance between FRs and DPSPs**.
- Held **limited amending power** is part of the **basic structure**.

◆ S.R. Bommai v. Union of India (1994)

- **Secularism** and **federalism** declared part of the **basic structure**.
- President's Rule under Art. 356 is **subject to judicial review**.

◆ Significance of Basic Structure Doctrine

- Prevents **abuse of power by Parliament**
- **Protects constitutional identity**
- Acts as **guardian of democracy and rule of law**
- Ensures **checks and balances** in constitutional governance

◆ Criticism of Basic Structure Doctrine

Criticism	Explanation
Not mentioned in Constitution	It is a judicial creation
Vague and undefined	No fixed list – depends on judges' interpretation
Limits parliamentary sovereignty	Some argue it undermines democracy by reducing Parliament's authority

◆ Conclusion

The **power to amend the Constitution** is essential for growth, but it **must not destroy the foundational principles**. The **Basic Structure Doctrine**, though a **judicial innovation**, plays a vital role in **preserving the spirit of the Constitution** and **protecting democracy** from majoritarian or authoritarian misuse of power.

■ Right to Property

◆ Historical Background

Originally, the **Right to Property** was a **Fundamental Right** under:

- **Article 19(1)(f)** – Right to acquire, hold and dispose of property
- **Article 31** – Right against deprivation of property without authority of law

However, due to frequent **conflicts between individual property rights and land reform laws**, this right was **gradually diluted** and finally **removed from the list of Fundamental Rights**.

◆ Right to Property – Timeline of Changes

■ 1. First Constitutional Amendment, 1951

- Added **Article 31A and 31B** to protect land reform laws from judicial review
- Inserted **9th Schedule** to shield laws from being challenged under FRs

■ 2. Fourth Amendment, 1955

- Limited the amount of **compensation** payable by the state when acquiring private property

3. Twenty-Fifth Amendment, 1971

- Replaced the word '**compensation**' with '**amount**' in Article 31(2)
- Introduced **Article 31C** – laws to implement **DPSPs** (like Art. 39(b) & (c)) immune from challenge under **Art. 14 or 19**

4. Forty-Fourth Amendment, 1978

- **Right to Property ceased to be a Fundamental Right**
- **Article 19(1)(f) and Article 31 were deleted**
- **New Article 300A** was inserted in **Part XII** (Chapter IV – Miscellaneous)

◆ Current Legal Status: Article 300A

Article 300A – “No person shall be deprived of his property save by authority of law.”

- Right to property is now a **constitutional legal right, not a Fundamental Right**
- If the government acquires property **without legal authority**, the person can challenge it in **High Court or Supreme Court under Article 226/32**
- But **no fundamental remedy** like in the case of FRs is available

◆ Key Differences: Then vs Now

Aspect	When FR (before 1978)	Now (After 44th Amendment)
Article	Art. 19(1)(f) & 31	Art. 300A
Enforcement	Through Supreme Court (Art. 32)	Only through High Court under Art. 226
Type of Right	Fundamental Right	Constitutional / Legal Right
Compensation	Guaranteed and justiciable	Not necessarily guaranteed
Can it be abridged by law?	Only under specific restrictions	Yes, through valid law

◆ Important Case Laws

◆ Kameshwar Singh v. State of Bihar (1952)

- First major land reform case
- Bihar Land Reforms Act was held unconstitutional due to inadequate compensation

◆ State of West Bengal v. Bela Banerjee (1954)

- Compensation must be **just and equivalent** to market value

◆ Kesavananda Bharati v. State of Kerala (1973)

- Held: **Parliament can amend property rights**, but must not **destroy Basic Structure**

◆ M. Nagaraj v. Union of India (2006)

- Reiterated: Right to Property is **no longer a Fundamental Right**, but **still protected under Article 300A**

◆ Jilubhai Nanbhai Khachar v. State of Gujarat (1995)

- Held that Article 300A provides **only limited protection**, subject to valid law

◆ Significance of Right to Property Today

- Still provides **protection against arbitrary acquisition**
- The State must acquire property **under authority of law**
- A person can claim **compensation only if provided in the statute**
- Protects **private ownership** but **not to the level of Fundamental Rights**

◆ Conclusion

The **Right to Property** has transformed from a **guaranteed Fundamental Right** to a **limited constitutional right**. While this change allowed the **State to implement land reforms and reduce inequality**, it also reduced the **legal protection available to individuals**.

Still, **Article 300A ensures** that no person is deprived of property arbitrarily — **lawful procedure is a must**.